

DATE _____ PROPERTY NAME / NUMBER _____
 RESIDENT NAME(S) _____

 UNIT NUMBER _____ STREET ADDRESS _____
 CITY _____ STATE _____ OR _____ ZIP _____

Resident and Owner/Agent agree as follows:

1. Resident, members of Resident's household, guests, or any other person under Resident's control **shall not engage in criminal activity, as defined in federal or state law, including illegal drug activity, on or near the Premises and shall not engage in any activity that constitutes a threat to people or property on or near the Premises.** These activities are material violations of the rental agreement.
2. In addition to any other remedies allowed by law, as described in ORS 90.396, Owner/Agent, after 24 hours' written notice specifying the cause, may *immediately* terminate the Rental Agreement in any of the following situations:
 - a) Resident or someone in Resident's control seriously **threatens to inflict substantial personal injury, or inflicts any substantial personal injury**, upon a person on the Premises other than Resident;
 - b) Resident or someone in Resident's control **recklessly endangers a person on the Premises** other than Resident by creating a serious risk of substantial personal injury;
 - c) Resident or someone in Resident's control **inflicts any substantial personal injury** upon a neighbor living in the immediate vicinity or **intentionally inflicts any substantial damage to the Premises**;
 - d) Resident **intentionally provided substantial false information on the application** for the tenancy within the past year; and the false information was with regard to a criminal conviction of Resident that would have been material to Owner/Agent's acceptance of the application;
 - e) Resident or someone in Resident's control commits **any act that is outrageous in the extreme** on the Premises or in the immediate vicinity of the Premises. Such acts include, but are not limited to:
 - i) **Prostitution or promotion of prostitution**, as described in ORS 167.007 and 167.012;
 - ii) **Manufacture, delivery or possession of a controlled substance**, as described in ORS 475.005, subject to the limitations defined in ORS 90.396(1)(f)(B);
 - iii) **Intimidation**, as described in ORS 166.155 and 166.165; or **burglary** as described in ORS 164.215 and 164.225.
 - f) With regard to "acts outrageous in the extreme" as described in this section, an act can be proven to be outrageous in the extreme even if it is one that does not violate a criminal statute.
 - g) Similar notices, but often with an option to cure, may be served in cases where certain of the above violation(s) are caused by Resident's pet.
 - h) Regarding prohibited acts defined by criminal statutes, **Owner/Agent's standard of proof for termination of the Rental Agreement remains the civil standard**, proof by a preponderance of the evidence.
3. Resident and other persons on the Premises with the consent of Resident shall conduct themselves in a manner that **will not disturb the neighbors' peaceful enjoyment of the Premises.**
4. Owner/Agent retains control over any common areas of the Premises for the purposes of enforcing state trespass laws and shall be the "person in charge" for that purpose as that phrase is defined in ORS 164.205(5). Common areas are locations shared by residents, such as laundry rooms, courtyards, hallways between dwellings, building entryways, and parking lots. This clause does not apply on property where there are no areas commonly shared by multiple residents (e.g., most single family detached dwellings).
5. In the case of conflict between the provisions of this addendum and any other provisions of the Rental Agreement, the provisions of this addendum shall govern.
6. This addendum is incorporated into the Rental Agreement executed or renewed this day between Resident and Owner/Agent.

X _____
 RESIDENT DATE

X _____
 RESIDENT DATE

X _____
 RESIDENT DATE

X _____
 RESIDENT DATE

X _____
 OWNER/AGENT DATE